

July 17, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 10457
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of chlorine contained in MC 331 cargo tanks equipped with angle valves, excess flow valves and pressure relief valves not presently authorized in the regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 178.337-9(b)(8), 178.337-11(a) and 173.315(i)(13) in that the outlets, pressure relief and excess flow valves for each cargo tank described in paragraph 7 are not authorized except as specified herein.
5. BASIS: This special permit is based on the application of Thatcher Company dated August 25, 2005, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	N\A

7. SAFETY CONTROL MEASURES: Packaging prescribed is a MC 331 cargo tank motor vehicle fabricated and equipped for chlorine service in accordance with the HMR (§ 178.337) except as follows:

a. The excess flow check valves in the liquid and gas lines must conform to Midland Manufacturing Corporation drawing A-120-ML-B dated March 9, 1990 and may be used in place of the valves specified in § 173.33(h). The excess flow check valves are authorized for use only when mounted in conjunction with Midland Manufacturing Corporation's one inch angle valve conforming to Midland Manufacturing Corporation's drawing A-713-ML dated January 7, 1991. The Midland Manufacturing Corporation's angle valves may be used in place of the angle valves specified in § 177.33(h).

b. The angle valves must be tested before installation and once every twelve months at not less than 225 psig using dry air or inert gas in lieu of that prescribed in § 173.33(f).

c. The pressure relief valve must conform to Midland Manufacturing Corporation's drawing A-1402 Series, valve number A-14227-ML, set at 225 psig, dated April 26, 1990, in lieu of that prescribed in § 173.315(i)(13).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

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- c. MARKING - Each cargo tank must be plainly marked on the curb side near the front in letters at least two inches high on a contrasting background, "DOT-SP 10457".
 - d. Packagings permanently marked 'DOT-E 10457', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after (date above) must be marked 'DOT-SP 10457'.
 - e. Shipping papers displaying 'DOT-E 10457' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
 - b. Drivers must have been instructed as to necessary safeguards and procedures in the event of unusual delay, fire, or accident.
 - c. Motor carriers operating under the terms of this special permit must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

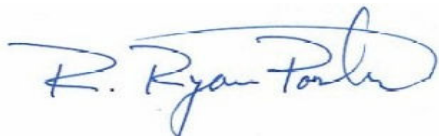
Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Foster" or similar, with a stylized flourish at the end.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln